

STATE OF NEW YORK

8849--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. McDONALD, LUNSFORD, KAY, LUPARDO, PAULIN, STECK, BUTTENSCHON, SEAWRIGHT, ANGELINO, K. BROWN, MAHER, JENSEN, P. CARROLL -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring the department of health to facilitate the exchange of data between the state prescription drug program and electronic health records

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (c) of subdivision 1 of section 3343-a of the
2 public health law, as added by section 2 of part A of chapter 447 of the
3 laws of 2012, is amended to read as follows:
4 (c) The registry shall be secure, easily accessible by practitioners
5 and pharmacists, and compatible with the electronic transmission of
6 prescriptions for controlled substances, as required by section two
7 hundred eighty-one of this chapter, and section sixty-eight hundred ten
8 of the education law, and any regulations promulgated pursuant thereto.
9 To the extent practicable, implementation of the electronic transmission
10 of prescriptions for controlled substances shall serve to streamline
11 consultation of the registry by practitioners and reporting of
12 prescription information by pharmacists. The registry shall be interoperable with other similar registries operated by federal or state
13 governments, to the extent deemed appropriate by the commissioner, and
14 subject to the provisions of section thirty-three hundred seventy-one-a
15 of this article. The commissioner shall promulgate regulations allowing
16 for any electronic health records integration vendor to obtain state
17 approval to facilitate interoperability between the prescription monitoring
18 program registry and certified electronic health records systems
19 that can connect with any national data sharing hub. Such approvals
20 should optimize the ability of prescribers and pharmacists to choose
21

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 their desired integration technology at no additional cost to the state.
2 Such interoperability shall:

3 (i) enable prescribers and pharmacists to access the prescription
4 monitoring program registry data directly through their certified elec-
5 tronic health records system or pharmacy dispensing software, including
6 via integration technology in place between the prescription monitoring
7 program registry or national data sharing hub and their certified elec-
8 tronic health records system or pharmacy dispensing software;

9 (ii) enable prescribers and pharmacists to visualize the prescription
10 monitoring program registry data in an integrated manner;

11 (iii) maintain an information security program that complies with
12 industry-standard security and privacy frameworks; specifically, main-
13 tain a current SOC 2 Type II attestation performed by a third-party
14 auditor; and maintain HITRUST CSF certification or demonstrate equiv-
15 alent controls consistent with the HITRUST framework;

16 (iv) ensure secure transmission and access to data consistent with
17 applicable state and federal privacy laws, including, but not limited
18 to, the Health Insurance Portability and Accountability Act (HIPAA) and
19 paragraph (d) of this subdivision; and

20 (v) in order to maximize efficiency and limit costs, be enabled to the
21 greatest extent possible through the existing prescription monitoring
22 program technology infrastructure.

23 § 2. This act shall take effect immediately.